

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
IN AND FOR THE COUNTY OF SAN MATEO**

Law and Motion Calendar  
Honorable Nancy L. Fineman  
400 County Center, Redwood City  
Department 4, Courtroom 4C  
Tuesday September 15, 2026

**If you intend to appear on any case on this calendar, you must give notice by 4:00 pm the court day before the hearing pursuant to California Rules of Court, Rule 3.1308(a)(1), and San Mateo County L.R. 3.403(b).**

**Failure to comply with notice as outlined will result in no oral presentation.**

**Notice of Appearance and Courtesy Copies**

1. Email [Dept4@SanMateoCourt.org](mailto:Dept4@SanMateoCourt.org) before 4:00 pm the court day before with a copy to all parties or their counsel of record. The email must include the name of the case, the case number, and the name of the party contesting the tentative ruling OR call (650) 261-5104 before 4:00 pm the court day before and follow the instructions on the message.
2. Courtesy Copies: You must email a copy of any reply brief, or an Opposition to a Motion for Summary Judgment in an Unlawful Detainer matter to:  
[LawAndMotionReplyBriefs@SanMateoCourt.org](mailto:LawAndMotionReplyBriefs@SanMateoCourt.org)

**Day of Hearing**

Appearances can be In Person or Remote. If appearing remotely by Zoom, please use your first and last name and mute your audio until your case is called. All parties must use a device with a camera if you are appearing remotely. Please login to the zoom hearing by 1:50 pm.

**Remote Appearance Zoom Information**

RECORDING OF A COURT PROCEEDING IS STRICTLY PROHIBITED.

<https://sanmateocourt.zoomgov.com/> Meeting ID: 160 624 8977 Password: 230279

**TO ASSIST THE COURT REPORTER, the parties are ORDERED to: (1) state their name each time they speak and only speak when directed by the Court; (2) not to interrupt the Court or anyone else; (3) speak slowly and clearly; (4) connect from a computer if at all possible, rather than a cell phone; (5) if a cell phone is absolutely necessary, the parties must be stationary and not driving or moving; (6) no speaker phones under any circumstances; (7) provide the name and citation of any cases referenced; and (8) spell all names, even common names.**

2:00 PM

LINE 1

21-CIV-06774

DAVID FOGEL ET AL. VS CITY OF MENLO PARK

CAILIN DARKE  
CITY OF MENLO PARK

JAMES PISTORINO  
KEVIN D. SIEGEL

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PLAINTIFFS' MOTION TO STAY ENFORCEMENT OF JUDGMENT AND ATTORNEY'S FEES AND COSTS BRIEFING  
PENDING APPEAL

**TENTATIVE RULING:**

The court rules on plaintiffs' motion to stay enforcement of judgment and attorney's fees and costs briefing pending appeal as follows:

This is a tax refund case that was filed in 2021 brought against the City of Menlo Park (City). Although the case moved quickly to class certification and liability, the case slowed down after that. The court's orders and the parties' briefing set forth the myriad of issues raised and decided by this court. On August 17, 2026, the court entered judgment deciding on all issues raised, except attorneys' fees and costs.

Neither party discusses the standard of review and burden of proof for a motion to stay pending appeal. Plaintiffs refer to Code of Civil Procedure sections 916 and 918 in their motion, but have no discussion or analysis of the section or any case law. (Motion at p. 1.) Section 916 refers to the stay on perfection on appeal and the trial court's jurisdiction during an appeal. Section 918 allows a judge to stay enforcement pending appeal.

Since plaintiffs are appealing the money judgment, they do not need to post a bond. (*Cal. Judges Benchbook Civ. Proc. After Trial* § 6.203 (Dec. 2025 update) (Benchbook).) The City does not argue that a bond is required.

Unless there is a specific statute regarding stays, "the perfecting of an appeal automatically stays proceedings on the judgment in the trial court, including enforcement proceedings. (Benchbook, *supra*, § 6.203 [citing Code of Civil Procedure § 916, subdivision (a); *LAOSD Asbestos Cases* (2018) 28 Cal.App.5th 862, 871–872; *Quiles v Parent* (2017) 10 Cal.App.5th 130, 137.) The parties do not discuss what is automatically stayed by this appeal and what is not stayed.

"[W]hether a matter is 'embraced' in or 'affected' by a judgment [or order] within the meaning of [section 916] depends on whether postjudgment [or postorder] proceedings on the matter would have any effect on the 'effectiveness' of the appeal." (*In re Marriage of Horowitz* (1984) 159 Cal.App.3d 377, 381, 205 Cal.Rptr. 880 (*Horowitz* ).) "If so, the proceedings are stayed; if not, the proceedings are permitted." (*Betz v. Pankow* (1993) 16 Cal.App.4th 931, 938, 20 Cal.Rptr.2d 841 (*Betz* ).)

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The fact that the postjudgment or postorder proceeding may render the appeal moot is not, by itself, enough to establish that the proceeding affects the effectiveness of the appeal and should be stayed under section. Rather, something more is needed. For example, the trial court proceeding must directly or indirectly seek to “enforce, vacate or modify [the] appealed judgment or order.” (*Elsea [v. Saberi]* (1992)], *supra*, 4 Cal.App.4th [625] at p. 629, 5 Cal.Rptr.2d 742 [“The trial court’s power to enforce, vacate or modify an appealed judgment or order is suspended while the appeal is pending”].) Or the proceeding must substantially interfere with the appellate court’s ability to conduct the appeal. (See, e.g., *Hollaway v. Scripps Memorial Hosp.* (1980) 111 Cal.App.3d 719, 723–724, 168 Cal.Rptr. 782 [holding that a pending appeal precludes the trial court from issuing an order relieving the parents as plaintiff’s guardians and appointing new counsel for plaintiff because the order interferes with the conduct of the appeal].)

A trial court proceeding also affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.

(*Varian Medical Systems, Inc. v. Delfino* (2005) 35 Cal.4th 180, 189–190.)

The court agrees with the City, as previously briefed and decided by the court, that the City can deposit the judgment amount with the settlement administrator to stop the accrual of interest. The court will not stay the City’s ability to deposit the judgment.

However, the court finds that the notice and claims administration process should not occur because, based upon the issues that class counsel has indicated will be the basis of the appeal, including the class period, discovery rulings, prejudgment interest, the class notice, the refund process, and the return of unclaimed funds to the City, it is possible that there may need to be a new damage trial and/or change in the distribution plan, including notice. To take any further action in this case increases time and expense for the court, the parties, including the class members, and also makes it more difficult to unwind any actions which the Court of Appeal finds improper. Plaintiffs do not seek to stay the class notice, but provide no analysis regarding why the expense of giving notice under a notice order which the plaintiffs will be appealing should go forward. If the Court of Appeal reverses any part of the judgment, the notice would have been of no value. Plaintiffs have provided no showing of the necessity to provide notice now when they argued, the City agreed and the court ordered that notice to the class did not need to be provided at the class certification stage or any time thereafter. Plaintiffs have argued that the class only needs to receive notice regarding the attorneys’ fees and costs, which is what plaintiffs specifically seek to stay.

As stated, plaintiffs also seek to stay enforcement of the motion for attorneys’ fees and costs, which is a collateral issue which can be decided even with the appeal. The court agrees with many of the City’s arguments, but defers to class counsel’s analysis and strategy since they have the fiduciary duties to the class. The court finds no violation of duty by class counsel for seeking to defer the attorneys’ fees motion because they are trying to preserve resources. For the reasons that the court finds that a stay is appropriate for a stay of enforcement of the judgment, the court also stays a decision about attorneys’ fees and costs.

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If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiffs shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 2

22-CIV-00303

AETNA INC VS GILEAD SCIENCES, INC

AETNA INC  
GILEAD SCIENCES, INCDANIEL A. SASSE  
MICHAEL J SHIPLEY

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PLAINTIFF AETNA INC.'S MOTION TO FILE DOCUMENTS UNDER SEAL

**TENTATIVE RULING:**

The court grants plaintiff Aetna Inc.'s (Aetna) motion to seal portions of Gilead Sciences' (Gilead) Notice of Motion for Summary Adjudication on ASO Claims and Memorandum in Support Thereof, Gilead's Proposed Order Granting Gilead Sciences' Motion for Summary Adjudication on ASO Claims, and thirty-six exhibits submitted in support of the Motion and the exhibits 20, 21, 22, 23, 26, 27, 28, 29, 30, 32, 33, 34, 36, 38, 39, 40, 41, 42, 43, 44, 45, 46, 47, 48, 49, 50, 51, 52, 53, 54, 55, 56, 57, 58, and 59, which were lodged conditionally under seal by Gilead Sciences on August 17, 2026:

In this case, Aetna sues defendants Gilead and related entities for alleged Cartwright violations.

The court has already granted previous motions to seal in this case. Now, Aetna seeks to seal portions of Gilead's motion for summary judgment. Because the court anticipates that these documents will be used in other pre-trial motions, the court makes these findings as to the use of these documents in all pretrial documents so that the parties do not need to bring successive motions to seal these documents. This order does not extend to the trial and the court will discuss what documents, if any, will be sealed at trial at a pretrial conference.

Public access to court proceedings is paramount. (Code Civ. Proc., § 124; *NBC Subsidiary (KNBC-TV), Inc. v. Superior Court* (1999) 20 Cal.4th 1178, 1197 (*NBC Subsidiary*)). “[O]pen trials serve to demonstrate that justice is meted out fairly, thereby promoting public confidence in such governmental proceedings [citation]; ‘[m]ore importantly,’ open trials provide a means, ‘akin in purpose to the other checks and balances that infuse our system of government,’ by which citizens scrutinize and ‘check’ the use and possible abuse of judicial power [citation]; and finally, ‘with some limitations’ [citation], open trials serve to enhance the truth-finding function of the proceeding [citation].” (*NBC Subsidiary*, at pp. 1201–1202, quoting Justice Brennan’s concurring opinion in *Richmond Newspapers, Inc. v. Virginia* (1980) 448 U.S. 555 [public access to criminal trial]; see *NBC Subsidiary*, at p. 1211 [concluding same principles apply to civil trials].) “ ‘Popular attendance at trials, in sum, substantially furthers the particular public purposes of that critical judicial proceeding. In that sense, public access is an indispensable element of the trial process itself....’ [Citation.]” (*NBC Subsidiary*, at p. 1202.) Court records are presumed to be open. (Cal. Rules of Court, rule 2.550(c).)

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Public access, however, is not absolute. (*NBC Subsidiary, supra*, 20 Cal.4th at p. 1217.) Certain types of information are confidential, and the public is not entitled to access that information. (See e.g. *Overstock.com, Inc. v. Goldman Sachs Grp., Inc.* (2014) 231 Cal.App.4th 471, 503.) To balance the competing policies, in order to prohibit the public from seeing certain documents in the court filed, the court must expressly find:

- (1) There exists an overriding interest that overcomes the right of public access to the records;
- (2) The overriding interest supports sealing the records;
- (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
- (4) The proposed sealing is narrowly tailored; and
- (5) No less restrictive means exist to achieve the overriding interest.

(Cal. Rules of Court, rule 2.550.)

Aetna has demonstrated that it seeks a narrow order sealing documents that seeks to seal documents that reference or contain highly confidential and commercially sensitive information, including proprietary material and non-public trade secrets of Aetna.

The court has reviewed the documents which Aetna requests to be sealed. They are the quintessential documents that the law allows to be sealed—confidential business or financial information and implicate sensitive and confidential medical information related to HIV that would not be public but for the lawsuit and the rules governing discovery. As set forth in the memorandum and declaration of Kari G. Ferver supporting the motion, the documents consisted of non-public contracts or contract related documents with their customers, information on how Aetna sets its commercial premiums, and portions of lists of Aetna’s customers; discovery responses and deposition testimony that reference this sensitive information. The documents contain sensitive and non-public financial, business and proprietary information.

After a review of the documents, the court expressly finds:

- (1) There exists an overriding interest that overcomes the right of public access to the records, i.e., confidential and sensitive business and financial information of Aetna and third parties and some documents implicate medical information about HIV, a confidential and sensitive condition;
  - (2) The overriding interest supports sealing the records to protect the parties’ interest;
  - (3) A substantial probability exists that the overriding interest will be prejudiced if the records are not sealed;
  - (4) The proposed sealing is narrowly tailored in that only the confidential and sensitive information is redacted; and
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(5) No less restrictive means exist to achieve the overriding interest.

THE CLERK OF THE COURT IS THUS ORDERED TO SEAL THESE DOCUMENTS. The parties are to make sure that there is a public version of each of the documents which is in the court file.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Aetna shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 3

22-CIV-03053

ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG

DALE WADE

MICHELLE AKERMAN

DAVID A. HARRIS

DALE WADE dba WADE & ASSOCIATES' MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

**TENTATIVE RULING:**

The court GRANTS the three unopposed motions for good faith settlement brought by: defendant and cross-defendant Maiden Stone, Inc. (Maiden Stone); cross-defendant Gambrioli Developments, Inc. (Gambrioli); and cross-defendant Dale Wade dba Wade & Associates (Wade).

When non-settling parties do not oppose a motion on the good faith issue, a barebones motion which sets forth the ground of good faith, accompanied by a declaration which sets for the a brief background of the case is sufficient. (*City of Grand Terrace v. Superior Court* (1987) 192 Cal.App.3d 1251, 1261.) The court does not need to analyze the factors set forth in *Tech-Bilt, Inc. v. Woodward-Clyde Associates* (1985) 38 Cal.3d 448 (*Tech-Bilt*) when the settlements are unopposed. However, each of the settling parties have introduced evidence demonstrating that each of the *Tech-Bilt* factors have been met.

The Hon. Nancy L. Fineman has been the single assigned judge since the inception of the case. Plaintiffs claim that approximately 7,000 square feet of limestone pavers installed in their patio failed. The court notes that it has been a hard-fought case and extensively litigated, including depositions of experts. Resolution of the case occurred on the eve of trial.

Defendant and cross-complainant Maiden Stone, the manufacturer of the pavers, has entered into a settlement agreement with plaintiffs for \$100,000.00. Maiden Stone provides a comprehensive analysis of the facts of the case, the potential liability of others, the potential issues of proof with plaintiff's case, including damages. Maiden Stone demonstrates that its settlement is within the ballpark of its potential liability and that the settlement was negotiated at arms-length. There is no evidence to the contrary. The court finds that Maiden Stone's settlement with plaintiffs was in good faith. The court grants Maiden Stone's request for judicial notice.

Cross-defendant Gambrioli was the general contractor and has settled with plaintiff for \$100,000.00. Gambrioli provides the background of the case and the reasons that it believes that its settlement is in good faith. Based upon its analysis of liability, it believes that it is paying more than its potential liability and its settlement is in the ballpark of its potential liability. There is no evidence to the contrary. Gambrioli also establishes that the settlement was negotiated at arms-length. The court finds that Gambrioli's settlement with plaintiffs is in good faith.

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On September 24, 2025, Wade, who is now only a cross-defendant, filed an application for good faith settlement with plaintiff pursuant to Code of Civil Procedure section 877.6, subdivision (a)(2), which was opposed. The court denied that application based upon the objections. Wade's current motion is based upon a settlement agreement with Maiden Stone resolving Maiden Stone's claim against Wade for \$50,000.00. In exchange, Maiden Stone's cross-complaint against Wade will be dismissed. Wade provides the background of the case, his analysis of liability, and that the settlement was negotiated at arms-length and is in the ballpark of his potential liability. There is no evidence to the contrary. The court finds that Wade's settlement with Maiden Stone is in good faith.

The court commends the parties for their work in resolving this case. Based upon the court's knowledge of the case, the settlement is in the best interests of all parties as trial would have been expensive, stressful, and, while the settling parties provide a comprehensive analysis of the case and their potential liability, the actual results may have been different (either more or less than the settlements). The settlements provide resolution to all parties and take away the risks of trial. The court approves these settlements.

The court sets an OSC re dismissal for January 5, 2027 at 9:30 a.m. in Department 4. If the parties need more time for all dismissals to be filed, they shall jointly email Department 4 no later than five court days before the hearing.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for each of the moving parties shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court waives the requirements of Local Rule 3.403(b)(iv). The court has not included language in the parties' proposed orders barring future claims, but that language should be added to the proposed orders. Absent objection from any of the parties, the moving parties may also add any other language necessary to make sure that the case against the moving party is resolved.

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2:00 PM

LINE 4

22-CIV-03053              ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG  
DALE WADE

MICHELLE AKERMAN  
DAVID A. HARRIS

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GAMBRIOLI DEVELOPMENT, INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

**TENTATIVE RULING:**

See the tentative ruling for Wade's motion for good faith settlement, which tentative ruling is incorporated by reference as if set forth fully herein.

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2:00 PM

LINE 5

22-CIV-03053              ELIZABETH CHUNG, ET AL. VS. DALE WADE, ET AL.

ELIZABETH CHUNG  
DALE WADE

MICHELLE AKERMAN  
DAVID A. HARRIS

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MAIDEN STONE INC.'S MOTION FOR DETERMINATION OF GOOD FAITH SETTLEMENT

**TENTATIVE RULING:**

See the tentative ruling for Wade's motion for good faith settlement, which tentative ruling is incorporated by reference as if set forth fully herein.

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2:00 PM

LINE 6

24-CIV-01136

JUSTIN GELLER VS. FORD MOTOR COMPANY, ET AL.

JUSTIN GELLER  
FORD MOTOR COMPANYROGER KIRNOS  
RICHARD DALLIN SOPP

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PLAINTIFF'S MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES

**TENTATIVE RULING:**

Plaintiff Justin Geller's unopposed Motion for Attorneys' Fees, Costs and Expenses is GRANTED-IN-PART pursuant to Civil Code section 1794 and the terms of the parties' settlement agreement, as follows:

Plaintiff filed this Song-Beverly Warrant Act (Song-Beverly) action on February 27, 2024, and filed a notice of conditional settlement on June 3, 2025. Plaintiff requests a total award of \$28,059.05, consisting of \$19,858.50 in lodestar fees, a lodestar enhancement of \$5,957.55, and costs and expenses in the amount of \$2,243.00.

*Reasonableness of Fees*

A buyer who prevails in an action under the Song-Beverly action is entitled to recover costs and expenses, including attorney's fees, reasonably incurred in connection with the commencement and prosecution of the action. (Civ. Code, § 1794; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105.) Attorneys' fees in a Song-Beverly case are based upon the lodestar method. (*Reynolds, supra*, 47 Cal.App.5th at p. 1112.) California courts have consistently held that a computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate attorneys' fee award." (*PLCM Group v. Drexler* (2000) 22 Cal.4th 1084, 1095 [internal quotations and citation omitted].) "The major factors the trial court must consider in determining an attorneys' fee award include: the nature of the litigation and its difficulty; the amount of money involved in the litigation; the skill required and employed in handling the litigation; the attention given to the case; the attorney's success, learning, age and experience in the particular type of work demanded; the intricacy and importance of the litigation; the labor and necessity for skilled legal training and ability in trying the case; and the amount of time spent on the case." (*Id.* at p. 1508 [citing *In re Marriage of Cueva* (1978) 86 Cal.App.3d 290, 296 and *Nevin v. Salk* (1975) 45 Cal.App.3d 331, 343].) "[T]he fee setting inquiry in California ordinarily begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.

Here, Plaintiff purchased a new 2019 Ford F-150 for a total sales price of \$57,302.23 ( the "Subject Vehicle"), which was manufactured and/or distributed by Defendant Ford Motor Company. (Kirnos Decl., ¶4.) Plaintiff presented the Subject Vehicle for repair repeatedly during the warranty period and thereafter contacted Knight Law firm who accepted the case on a

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contingency basis and filed this action on February 27, 2024. (*Id.*, at ¶¶5-8.) Following litigation, the parties entered a settlement agreement on June 12, 2025 whereby the action was resolved for \$141,234.00 and Plaintiff was agreed to be the prevailing party and entitled to attorney's fees, costs, and expenses pursuant to the Song-Beverly Act. (*Id.*, ¶¶9-13, Exh. C.)

Plaintiff requests a lodestar attorney fee award of \$19,858.50, and a lodestar multiplier of 1.3, for a total fee request in the amount of \$25,816.05. (*Id.*, ¶2, Exh. A.) Time was billed in increments of tenths of an hour, at rates ranging from \$145/hr to \$600/hr based on who was billing and for what task. (*Id.*) The rates charged are supported as reasonable by the uncontested statements of experience of the time keepers. (*Id.*, ¶¶27-28.)

As to the hourly rate, the reasonable hourly rate is the reasonable hourly rate for San Mateo County where this case is venued. “ ‘The reasonable hourly rate is that prevailing in the community for similar work.’ ” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler, supra*, 22 Cal.4th at p. 1095].) This court may use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds, supra*, 47 Cal.App.5th at pp. 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The Laffey matrix is another resource to determine a reasonable hourly rate. (*Syers Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702 [court can use Laffey Matrix for reasonable hourly rate].) The court finds that hourly rates ranging from \$145.00 to \$600.00 reasonable to prosecute a Song-Beverly case in San Mateo County. On August 18, 2026, this court approved these hourly fees in an action brought by the Knight Law Group, LLP against Ford Motor Company, *Scott v. Ford Motor Company*, case no. 24Civ06446.

As to the reasonableness of the work, this court has a responsibility to review the billing records. In *Ketchum v. Moses*, our Supreme Court explained: “In referring to ‘reasonable’ compensation, we indicated that trial courts must carefully review attorney documentation of hours expended; ‘padding’ in the form of inefficient or duplicative efforts is not subject to compensation.” (*Ketchum v. Moses, supra*, 24 Cal.4th at p. 1132.) In *Harman v. City and County of San Francisco* (2006) 136 Cal.App.4th 1279 the court analyzed the considerations relevant to this initial lodestar determination by looking to *Hensley v. Eckerhart* (1983) 461 U.S. 424 (superseded in part by statute on other grounds), in which the court “instruct[ed] that the initial lodestar calculation should exclude ‘hours that were not reasonably expended’ “ and drew an analogy to private billing practices: “ ‘Counsel for the prevailing party should make a good-faith effort to exclude from a fee request hours that are excessive, redundant, or otherwise unnecessary, just as a lawyer in private practice ethically is obligated to exclude such hours from his fee submission. “In the private sector, ‘billing judgment’ is an important component in fee

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setting. It is no less important here. Hours that are not properly billed to one's client also are not properly billed to one's adversary pursuant to statutory authority.” ‘ ‘ ( *Harman v. City and County of San Francisco*, at p. 1310 [quoting *Hensley v. Eckerhart*, at p. 434].) “Counsel is not entitled to compensation for ... work merely because it was performed. Rather, it is counsel's burden “to persuade the trial court the work was reasonably necessary, both as to the particular tasks performed and the amount of time devoted to them.” ( *Howell v. State Dept. of State Hospitals* (2024) 107 Cal.App.5th 143, 158–159 [internal quotations and citation omitted].)

Here, plaintiff's counsels' time entries show 48.9 hours expended for a total lodestar of \$19,858.50, recorded as daily time entries in tenth of an hour increments. (Kirnos Decl., ¶2, Ex. A.) No objections have been raised. The time expended for each task appears reasonably necessary and reasonable in amount except for the time to review the opposition, prepare a reply and appear at the hearing. Since no opposition or reply was filed, the court disallows that time of 3 hours at \$575.00 per hour. The court also strikes the time to prepare for and appear at the hearing, 1 hour at \$575.00. If defendant contests the tentative ruling, the court will consider allowing this time.

### *Multiplier*

The court denies a request for a lodestar adjustment. The lodestar amount “ ‘may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.’ ([Citations])” ( *Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) “ ‘[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.” [Citation] ‘[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, *e.g.*, to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.’ [Citation] In cases involving the enforcement of constitutional or statutory rights, “such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] ‘[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.’ ” [Citation.] ( *Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier. ( *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.) The court considers the contingent risk and delay in the hourly fee and does not find a multiplier appropriate in this case.

Attorneys' fees are accordingly awarded based upon the lodestar amount of without a multiplier.

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*Costs*

The usual method to recover costs as a prevailing party is by filing a Memorandum of Costs pursuant to Cal. Rules of Court, rule 3.1700. Plaintiff here filed a Memorandum of Costs on June 3, 2026 which seeks \$2,596.50 in costs, consisting of \$990.00 in filing and motion fees, \$150.00 in jury fees, \$30.50 for service of process, and \$1,426.00 for “other” costs, which include \$1,420.00 for attorney services and messenger court filings and \$6.00 for minute orders.

However, Plaintiff previously filed a Memorandum of Costs on December 1, 2025, requesting an award of \$2,243.00 in costs. Plaintiff’s Notice of Motion filed June 3, 2026 requests costs in that amount. The December 1, 2025 Memorandum of Costs seeks costs consisting of \$705.00 in filing and motion fees, \$150.00 in jury fees, \$899.55 in deposition costs, \$101.00 for service of process, and \$387.45 for “other” costs, which include \$211.45 for attorney services and messenger court filings and service and \$176.00 for “SMART ADR Invoice: Mediation with Ron Akasaka (5/22/25; 5 cases).” No motion to strike or tax costs has been filed, and no objection has been raised.

Costs are accordingly awarded as requested in Plaintiff’s Notice of Motion in the amount of \$2,243.00.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Plaintiff shall prepare a written order consistent with the court’s ruling for the court’s signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 7

24-CIV-04622

MARTIN AERON ARIAS VS. BERG SENIOR SERVICES, LLC

MARTIN AERON ARIAS  
BERG SENIOR SERVICES, LLCHELGA HAKIMI  
ANDREW R SHALAUTA

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RENEWED MOTION FOR ATTORNEYS' FEES, LITIGATION COSTS, A CLASS REPRESENTATIVE ENHANCEMENT PAYMENT, AND SETTLEMENT ADMINISTRATION COSTS

**TENTATIVE RULING:**

On June 23, 2026 with written order filed July 29, 2026, the court granted final approval of this class and PAGA (Private Attorney General Act) settlement of \$1,100,00.00. However, the court denied without prejudice the request for attorneys' fees, costs, settlement administer fees, and service award. The court rules upon the amended motion as follows:

Plaintiff's counsel seeks an attorney fee award of \$366,666.00 or one-third of the gross settlement amount and the court grants the request.

The court in reviewing the facts of this case finds that a one-third award is appropriate. (*Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503 (*Lafitte*) ["33 1/3 percent of the common fund is consistent with, and in the range of, awards in other class action lawsuits"]; *Chavez v. Netflix, supra*, 162 App. 4th 43, 66 fn. 11 [final fee award was 27.9% of the benefits]; see *Cotchett, Pitre & McCarthy v. Universal Paragon Corp.* (2010) 187 Cal.App.4th 1405, 1421 [noting the arbitrator found that typical contingency is 33 to 40 percent].) Plaintiff's reliance on a federal case from 2008, *Fernandez v. Victoria Secret Stores, LLC*, (C.D. Cal. Jul. 21, 2008) No. CV 06-04149 MMM SHX, 2008 WL 8150856, at \*16 regarding the amount of contingency fees is not precedential authority. The benchmark in the Ninth Circuit is twenty-five (25%). (*Six (6) Mexican Workers v. Arizona Citrus Growers* (9th Cir. 1990) 904 F.2d 1301, 1311; *Lealao v. Beneficial California, Inc.* (2000) 82 Cal.App.4th 19, 24, fn. 1.) However, the court relies on California authority where the one-third is common.

While a common fund fee is appropriate here, even a proper common fund-based fee award should be reviewed through a lodestar cross-check. (*Lafitte, supra*, 1 Cal.5th at p. 503.) Plaintiff's counsel shows a lodestar of \$214,460.00 with hourly rates requested ranging from \$475.00 to \$1,020.00. (Perez Decl., ¶26.)

In reviewing the evidence submitted, the court finds that the hourly rates are reasonable for San Mateo County. " 'The reasonable hourly rate is that prevailing in the community for similar work.' " (See *Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].) Counsel provide a variety of examples in the San Francisco Bay Area, including a San Mateo County case, where their hourly rate has been approved.. Counsel also cite to the Laffey index which may be used by the trial court (*Syers*

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*Properties III, Inc. v. Rankin* (2014) 226 Cal.App.4th 691, 702.) The court may also use its own experience to determine the value of attorneys' fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 ["The value of attorney's services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value."]; *Reynolds v. Ford Motor Company* (2020) 47 Cal.App.5th 1105, 1113-14 ["The trial court acted well within its discretion in using 'the prevailing market value in the community for similar legal services' relying on its personal knowledge and familiarity with the area legal services, as the 'touchstone' for determination" of the reasonable hourly rates." (citations omitted)]). This court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys' fees and costs frequently during her time as a judicial officer. The court finds the hourly rates reasonable.

The court has reviewed all the billing statements submitted by counsel and finds the work performed reasonable. If the court was awarding fees based solely on the hours worked, it would make some reductions, but since the lodestar is just a cross-check, the court finds the hours reasonable. The court compared the work performed in this case to the case of *Ayala v. RHR California Services, LLC*, San Mateo case no. 23Civ02830, one of the cases cited in support of the attorneys' fees. Although there was similarities in the complaint and motion for preliminary approval (the only documents reviewed by the court), there were also differences and it is efficient to build upon work already done when litigating a similar case. The case was appropriately staffed.

The lodestar amount is only \$238,297.50, lower than the requested fees of \$366,666.00. However, the court awards the requested multiplier. The lodestar amount " 'may be adjusted by the court based on factors including ... (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.' ([Citations])" (*Center for Biological Diversity v. County of San Bernardino* (2010) 185 Cal.App.4th 866, 899.) " '[T]he purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class.' [Citation] '[T]he unadorned lodestar reflects the general local hourly rate for a fee-bearing case; it does not include any compensation for contingent risk, extraordinary skill, or any other factors a trial court may consider.... The adjustment to the lodestar figure, e.g., to provide a fee enhancement reflecting the risk that the attorney will not receive payment if the suit does not succeed, constitutes earned compensation; unlike a windfall, it is neither unexpected nor fortuitous. Rather, it is intended to approximate market-level compensation for such services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney fees.' [Citation] In cases involving the enforcement of constitutional or statutory rights, "such fee enhancements may make such cases economically feasible to competent private attorneys. [Citation.] '[M]ost lawyers of this quality do seem to consider the prospects of success and the fee recoverable before adding to their crowded calendars a case in which payment is contingent.' " [Citation.] (*Ibid.*) The trial court can consider contingent risk and delay in determining the reasonable hourly rates of the attorneys and not consider it when considering a multiplier.

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(*California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537.)

The court believes that a multiplier is appropriate here because of the fact that plaintiff's counsel has had to wait to get paid for the work they have performed and plaintiff's counsel worked efficiently to resolve the case. The court seeks to award the efficient work. While there were no novel issues in this case, the recovery is significant for most class members.

## **COSTS**

The court approves the costs of \$15,000.00 to class counsel as reasonable and necessarily incurred. The court also approves the fees of \$8,600.00 to the settlement administrator, Phoenix Settlement Administrators, as reasonable and necessarily incurred.

## **SERVICE FEE AWARD**

Class representative Martin Aeron Arias requests a service award of \$10,000.00 for his service. The court awards \$7,500.00 to Arias as a reasonable service fee award. The court acknowledges the important role he played in the litigation. While he signed a general release, he provides no facts to demonstrate that he had any claim different than the class members. While the court is aware of reputation harm, the law protects an employee from being retaliated against by an employer and if plaintiffs believe that any employer is retaliating against her for being a plaintiff in this lawsuit, they shall notify their counsel who shall immediately notify the court. The court has not been advised at any time during the course of this litigation of any alleged retaliation. *Gentry v. Superior Court* (2007) 42 Cal.4th 443 discusses the fear of retaliation as a reason an employee might not bring a lawsuit, but our Supreme Court states that the statistics demonstrated that enforcement mechanisms to sanction retaliation were working. (*Id.* at pp. 460-461.) The court acknowledges the 30 hours that Arias spent on the case and the incentive award gives him \$250 per hour. He did not have to sit for a deposition, respond to discovery or attend the mediation or any court hearings. Although other judges may award more or less, each judge decides each case on its own merits. This court concludes that for this case, \$7,500.00 for Arias is the appropriate service award.

The parties are either to email Department 4 by 11:00 a.m. on September 15, 2026 with a proposed hearing date for the compliance hearing, or properly contest the tentative ruling and suggest at the hearing a compliance hearing date.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The court modifies San Mateo Local Rule to allow the parties to add additional information that they believe is necessary, but only when it is not inconsistent with the tentative ruling issued by the court. The court also suggest that the parties add the findings from the preliminary approval ruling since the final settlement approval summarizes those findings.

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2:00 PM

LINE 8

25-CIV-00357

MARK FARINO VS. NATALIE LANE

MARK FARINO  
NATALIE LANE

PRO SE  
DAVID BANIE

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DEFENDANT NATALIE LANE'S MOTION FOR ORDER COMPELLING RESPONSES TO WRITTEN DISCOVERY

**TENTATIVE RULING:**

Defendant Natalie Lane seeks an order compelling Plaintiff Mark Farino to respond to Defendant's Form Interrogatories (FROGS), Set One, Amended Special Interrogatories (SROGS), Set One, and Amended Request for Production of Documents (RFP), Set One.

Defendant's motion to compel responses is GRANTED.

Defendant's request for sanctions is GRANTED in part.

As an initial matter, the Court notes that Plaintiff's opposition was filed eight days late, on September 9, 2026 – after Defendant had already filed a reply brief the day before, despite that no opposition was filed. The Court exercises its discretion to consider the Plaintiff's late-filed opposition and notes that, in doing so, the outcome of this motion was not changed.

**BACKGROUND**

*Discovery Requests*

On March 13, 2026, Defendant propounded a set of requests for production of documents, special interrogatories, and form interrogatories to Plaintiff via email. (Banie Decl., ¶ 2.) Plaintiff did not respond. (*Id.*, ¶¶ 8, 9.) However, Defendant withdrew those discovery demands, which were directed at the First Amended Complaint, and served amended discovery demands directed at the now-operative Second Amended Complaint. (*Id.*, ¶ 4.)

On April 24, 2026, Defendant served Plaintiff, via email and U.S. mail, with Defendant's Amended RFP (Set One), Defendant's FROGS (Set One), Defendant's Amended SROGS (Set One), and the Amended Declaration of David Banie supporting the SROGS. (*Id.*, ¶ 3, Exs. A-D.)

On May 27, 2026, Defense counsel sent a letter to Plaintiff reminding him that his responses to the propounded discovery demands would become due in a few days. (*Id.*, ¶ 6, Ex. G.) On May 29, 2026, Plaintiff responded with a letter alleging that the service by email was defective because it was sent on an unrelated email thread. (*Id.*, ¶ 7.) However, the letter did not address that the documents were also sent by U.S. mail. (*Id.*, ¶ 8.) Further, Plaintiff previously acknowledged receiving service of the discovery demands by both mail and email in a

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declaration filed on May 5, 2026, in support of an *ex parte* application to stay this action, which was denied. (*Id.*, ¶ 5, Ex. F.)

Defendant filed this motion to compel on June 10, 2026.

*Subsequent Efforts to Resolve the Matter*

On August 14, 2026, Defense counsel sent a letter to Plaintiff regarding an offer to withdraw this motion if Plaintiff produced certain responses to the outstanding discovery requests. (Farino Decl., ¶ 6, Ex. 1.) The letter stated:

This letter serves as a follow up to my offer about taking off calendar Ms. Lane's motion to compel written discovery and for sanctions in exchange for some of the information that is the subject of that motion. If you are still interested in this offer, it is still open. Your deposition transcript is now available. So, at your request, I will review that transcript then provide you with a list of information that I need before taking the Motion off calendar. If you deliver that information to us in a timely fashion, Ms. Lane will take the motion to compel and for sanctions off calendar.

(*Ibid.*)

On August 17, 2026, Plaintiff sent Defense counsel a letter via email addressing, among other things, Defendant's offer to withdraw the motion compel upon the production of certain discovery responses. (Banie Supp. Decl., ¶ 8, Ex. A.) Plaintiff's letter stated, in relevant part:

Before my deposition, we agreed that you would review my deposition testimony and identify the specific information you believed remained outstanding. You subsequently advised that the transcript was available and that you would review it and provide me with the transcript together with notations identifying the matters you contend remain unanswered.

Please send me the deposition transcript with those notations, as previously discussed. Once I receive it, I will review the identified matters promptly and respond in accordance with our prior agreement.

(*Ibid.*)

On August 18, 2026, Defense counsel sent a letter to Plaintiff clarifying that he never agreed to give Plaintiff a copy of the deposition transcript, which the parties must purchase from the certified shorthand reporter who took the deposition. (Farino Decl., Ex. 2.) Defense counsel explained his offer:

Here is what I said. Every one of Ms. Lane's written discovery requests — the Form Interrogatories, the Special Interrogatories, and the Requests for Production,

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all served on you April 24, 2026 — is at issue in the pending motion. Not one of them has been withdrawn, and nothing that happened at your deposition narrowed them. What I told you is that I would review your deposition testimony, identify the critical information I still need, and that if you gave me that information voluntarily I would take the motion off calendar. That was the offer. It is still the offer. Full stop.

*(Ibid.)*

Defense counsel's letter included a lengthy, bulleted list of what he described as "the critical information I told you I would identify," which included 27 categories of documents and information sought by Defendant, complete with citations to the corresponding discovery demands and citations to Plaintiff's deposition, where relevant. *(Ibid.)* Preceding that list, the letter states:

[H]ere is the information I still need. You closed your letter by saying that nothing in it alters the agreement we reached before your deposition. Nothing in mine does either. This letter is me performing my half of it.

*(Ibid.)* Following the bulleted list of discovery categories, Defense counsel states that several of the listed items were offered by Plaintiff at his deposition, including "the bracketed items you agreed at the close of your deposition to complete." *(Ibid.)* The letter goes on to state: "I will send you the list of bracketed page and line citations separately, as I said I would, so that the last of those items is squarely in your hands." *(Ibid.)*

The letter concludes: "I share the interest you express in keeping discovery focused and resolving it without unnecessary motion practice. So, my offer stands. Give me the information set out above by September 8, 2026, and I will take the motion off calendar." *(Ibid.)*

### DISCUSSION

#### Motion to Compel

Plaintiff does not dispute his failure to respond to the FROGS, SROGS, and RFP. Nor does Plaintiff dispute that his responses remain outstanding.

Plaintiff explains that Defendant offered to drop this motion to compel and request for sanctions if he produced certain documents prior to September 8, 2026. Plaintiff states that he did not do so because Defense counsel stated in his letter dated August 18, 2026, that he would produce a "list of bracketed page and line citations separately" – but failed to do so, while Plaintiff waited in reliance. Plaintiff argues that Defendant's failure to provide the list of bracketed page and line citations justifies denying this motion to compel and Defendant's request for sanctions.

The Court disagrees. While the precise significance of list of "bracketed page and line citations" is unclear, Defendant's letter explicitly identifies 27 categories of documents and information

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sought, which Defense counsel describes as “the critical information I told you I would identify.” At a minimum, to comply with Defendant’s offer, Plaintiff could and should have provided responses addressing the categories of documents and information identified in Defendant’s letter, rather than standing by idly. Nothing in the evidence provided by either party indicates that Plaintiff ever followed up seeking the bracketed list mentioned in Defendant’s letter. And further, separate from the parties’ late attempt to resolve this matter cooperatively, Plaintiff had possession of the discovery demands at issue since they were served on April 24, 2026, and could have served responses at *any time* before the deadline, after the deadline, after defendant filed the motion to compel, or after defendant’s August 18 letter – but failed to do so.

Accordingly, Defendant’s motion to compel responses to Defendant’s Amended RFP (Set One), Amended SROGS (Set One), and FROGS (Set One) is GRANTED. Plaintiff shall serve complete responses without objections within fourteen (14) days of notice of entry of this order.

### Sanctions

“[T]he court shall impose a monetary sanction . . . against any party . . . who unsuccessfully makes or opposes a motion to compel” a responses to interrogatories and/or requests for production of documents, “unless it finds that that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).)

While California law does not require detailed billing records or time sheets to support a fee award in connection with discovery sanctions, the moving party must submit a declaration setting forth the hourly billing rate, the number of hours expended, and a description of the tasks performed in connection with the motion. (*See, e.g., Steiny & Co. v. California Elec. Supply Co.* (2000) 79 Cal.App.4th 285, 293.) Here, Defendant’s supporting declaration provides only the sum of \$4,250 in attorney’s fees and \$600 in paralegal fees, with no details concerning the hourly rate, hours expended, or tasks performed. Thus, the Court cannot tell if the sanctions requested are reasonable.

However, this Court may use its own experience to determine the value of attorneys’ fees. (*Spencer v. Collins* (1909) 156 Cal. 298, 306 [“The value of attorney’s services is a matter with which a judge must necessarily be familiar. When the court is informed of the extent and nature of such services, its own experience furnishes it with every element necessary to fix their value.”]; *Reynolds v. Ford Motor Co.* (2020) 47 Cal.App.5th 1105, 1113-14 [“The trial court acted well within its discretion in using ‘the prevailing market value in the community for similar legal services’ relying on its personal knowledge and familiarity with the area legal services, as the ‘touchstone’ for determination” of the reasonable hourly rates.”] (citations omitted)].). This Court had extensive experience in class action and other common fund cases while an attorney and has made decisions about attorneys’ fees and costs frequently during her time as a judicial officer, including awarding attorneys’ fees as a sanction in discovery motions.

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Accordingly, the Court awards attorneys' fees of four hours at \$350.00 per hour for a total of \$1,400 plus the filing fee of \$60.00 for a total fee of \$1,460.00. The sanctions shall be paid within ninety (90) days after notice of entry of order.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 9

25-CIV-05040

IMELDA NAVARRO VS. SYLVIE OCAFRAIN, ET AL.

IMELDA NAVARRO,  
SYLVIE OCAFRAIN

MAREENA IBRAHIM

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COSTCO WHOLESALE CORPORATION'S MOTION FOR SUMMARY JUDGMENT

**TENTATIVE RULING:**

Defendant Costco Wholesale Corporation's ("Defendant") Motion for Summary Judgment is GRANTED to the Complaint by Plaintiff Imelda Navarro ("Plaintiff").

***Background***

Plaintiff brings this action for general negligence and premises liability against Defendant after Plaintiff slipped and fell on a liquid substance at Defendant's store on July 19, 2023.

Defendant moves for summary judgment on the ground that it performed reasonable inspections of the premises and the burden shifts to Plaintiff to demonstrate that Defendant had notice of the water on the floor prior to the accident. Defendant also argues that Plaintiff cannot demonstrate Defendant had actual or constructive notice of the dangerous condition.

***Plaintiff's Responsive Separate Statement fails to comply with California Rules of Court, rule 3.1350***

Plaintiff's responsive separate statement does not include the evidence cited in Defendant's separate statement. As such, it fails to comply with the opposing separate statement format required under rule 3.1350(h). (See Cal. Rules of Court, rule 3.1350(h).) The court exercises its discretion to still consider Plaintiff's responsive separate statement, but it cautions Plaintiff to comply with this rule in the future.

***Legal Standard***

For purposes of a summary judgment or summary adjudication motion, the defendant has met the initial burden of showing that a cause of action has no merit if the party has shown that one or more elements cannot be established, or there is a complete defense to the cause of action. (Code Civ. Proc., § 437c, subd. (p)(2).) Once the defendant has met this burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. (*Ibid.*)

For a defendant to meet the initial burden, it may present affirmative evidence negating as a matter of law an essential element of plaintiff's claim. (*Guz v. Bechtel Nat., Inc.* (2000) 24

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Cal.4th 317, 334.) Another way for a defendant to meet its initial burden is to show that an essential element of plaintiff's claim cannot be established. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 854.) To rely on an absence of evidence, the defendant must show that plaintiff does not possess and cannot reasonably obtain needed evidence. (*Ibid.*) Such evidence usually consists of admissions by plaintiff following sufficient discovery to show plaintiff has discovered nothing to support an essential element of the cause of action. (*Id.* at p. 855.) The defendant cannot just point out through argument that plaintiff does not possess and cannot reasonably obtain needed evidence, but must indeed present evidence. (*Ibid.*)

"Because summary judgment denies the adverse party a trial, it should be granted with caution." (*Assilzadeh v. California Fed. Bank* (2000) 82 Cal.App.4th 399, 409.) Summary judgment law turns on issue finding rather than issue determination. (*Diep v California Fair Plan Ass'n* (1993) 15 Cal.App.4th 1205, 1207.) The court does not decide the merits of the issues, but merely discovers whether there are issues to be tried and whether the parties possess evidence that demands the analysis of a trial. (*Melamed v City of Long Beach* (1993) 15 Cal.App.4th 70, 76.) Declarations of the moving party are strictly construed, those of the opposing party are liberally construed, and doubts as to whether a summary judgment should be granted must be resolved in favor of the opposing party. (*Aguilar, supra*, 25 Cal.4th at pp. 843-856.)

The elements of a negligence claim and a premises liability claim are the same: a legal duty of care, breach of that duty, and proximate cause resulting in injury. (*Kesner v. Superior Court* (2016) 1 Cal.5th 1132, 1158.) The duty arising from possession and control of property is adherence to the same standard of care that applies in negligence cases. (*Ibid.*) Although a store/business owner is not an insurer of the safety of its patrons, the owner owes a duty to exercise reasonable care in keeping the premises reasonably safe. (*Ortega v. Kmart Corp.* (2001) 26 Cal.4th 1200, 1205 (*Ortega*).) "The owner of premises is under a duty to exercise ordinary care in the management of such premises in order to avoid exposing persons to an unreasonable risk of harm. A failure to fulfill this duty is negligence." (*Brooks v. Eugene Burger Management Corp.* (1989) 215 Cal.App.3d 1611, 1619.)

An owner must have had actual or constructive notice of the dangerous condition before incurring liability. (*Ortega, supra*, 26 Cal.4th at pp. 1203-04.) At trial, the plaintiff bears the burden to prove that the owner had actual or constructive notice of the defect in sufficient time to correct it. (*Ibid.*)

### ***Defendant meets its initial burden***

Defendant proffers evidence to show that Plaintiff lacks any evidence that it had actual notice of the dangerous condition. (Defendant's Separate Statement of Undisputed Material Facts ("DSSUMF") nos. 3-4.) Defendant's affirmative evidence also supports that it did not have actual notice of the dangerous condition. (DSSUMF no. 8.)

Defendant also presents evidence to support that Plaintiff cannot establish constructive notice. Plaintiff slipped and fell at 7:19 p.m. in the Deli area of Defendant's warehouse when she stepped in water on the ground. (DSSUMF nos. 1-2.) Plaintiff does not know how long the water was

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there prior to her fall. (DSSUMF no. 3.) Defendant's policy is to perform hourly floorwalks at the warehouse when open for business. (DSSUMF no. 5.) No potential hazards related to the Deli area were noted on the daily floor walk/safety inspection sheet from the date of the accident. (DSSUMF no. 8.) In addition to hourly floorwalks, Defendant's maintenance employees walk around with brooms to ensure the floors are clean. (DSSUMF no. 9.) At approximately 7:17 p.m., Defendant's employee, Gio Carranzo ("Carranzo") walked through the Deli area and past the location where Plaintiff slipped and fell. (DSSUMF no. 11.) Carranzo looked at the floor but he did not see any liquids or spills. (DSSUMF no. 12.) Defendant's evidence therefore supports that Plaintiff cannot establish constructive notice because it reasonably inspected the area approximately two minutes before Plaintiff slipped and fell.

Therefore, Defendant meets its initial burden by affirmatively introducing evidence showing Plaintiff cannot establish actual or constructive notice based upon its inspections. As the Court of Appeal stated in *Gonzalez v. Interstate Cleaning Corp.* (2024) 106 Cal.App.5th 1026, 1036: "We conclude the trial court properly ruled the undisputed evidence showed defendants actively inspected the floor, and the eight to nine-minute interval between the last inspection and plaintiff's fall was insufficient to demonstrate constructive knowledge." In this case, Defendant demonstrates that it did not have knowledge of any spill *two minutes* before Plaintiff fell, a shorter time than the eight-to-nine minute span found sufficient to show lack of constructive knowledge in *Gonzalez*.

***Plaintiff fails to raise a triable issue of material fact***

As to actual notice, Plaintiff argues that her discovery responses are not factually devoid because she identified the hazard as streaked water dripping from a source and produced affirmative evidence, her deposition testimony, verified interrogatory responses and scene photographs. (Plaintiff's Opposition, pp. 5:25-6:4.) Plaintiff fails to explain how this raises a triable issue of material fact as to Defendant's actual notice though. Furthermore, Plaintiff does not dispute that she does not know how long the water was there and that she has no personal knowledge of any Costco employee being aware of water on the ground prior to her accident. (Plaintiff's Response to DSSUMF nos. 3-4.) Plaintiff also claims that a hazard was noted in the adjacent food court. (Plaintiff's Response to DSSUMF no. 8.) However, the cited evidence (Crowell Decl., ¶ 12) states only that the potential hazards noted during the floorwalks on July 19, 2023 were related to the food court and back door alarm. Plaintiff does not provide evidence to show the Deli area is adjacent to the food court. Plaintiff also does not provide any evidence regarding how a potential hazard related to the food court provided actual notice of the alleged dangerous condition in the Deli area. While the Court considers the evidence in the light most favorable to Plaintiff, the only reasonable inference from this evidence for this motion is that Defendant did conduct inspections and noted potential hazards. As such, Plaintiff fails to raise a triable issue of material fact as to Defendant's actual notice of the dangerous condition.

Plaintiff also fails to raise a triable issue of material fact as to Defendant's constructive notice. As discussed above, Defendant's evidence shows that Carranzo walked by the area of the accident approximately *two minutes* before the accident and did not see any liquid or spills on the ground. Plaintiff argues a jury could reasonably infer from the volume, streak and tracked appearance of

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water that it had been on the floor long enough that a reasonable inspection would have discovered it, but Plaintiff fails to provide evidence as to the volume, streak and tracked appearance. Plaintiff cites to her own deposition and response to interrogatories in which she states that she slipped in water that was dripping and that the dangerous condition consisted of long streaks of water. (DSSUMF no. 12.) This evidence does not provide any information regarding the volume, streak and tracked appearance though. Plaintiff's pictures of these apparent streaks of water are also unexplained. (Demirjian Decl., ¶ 5, and Exh. 3.) It is pure speculation without an evidentiary basis. Plaintiff's counsel states that they are true and correct copies of photographs of water on the floor at the scene of the incident, but there is no other information such as when they were taken, the volume, how long the streak was or any other information. More importantly, Plaintiff does not present any argument or evidence to raise a triable issue of material facts regarding Defendant's claim that it inspected the area two minutes prior to the accident and did not show any liquid and that such inspection was reasonable. Plaintiff therefore fails to raise a triable issue of material fact as to constructive notice.

Plaintiff further claims that notice is not required because the water appeared to have been dripping from the Deli department and thus a jury could infer the water originated from Defendant's instrumentality. (See *Hatfield v. Levy Bros.* (1941) 18 Cal.2d 798, 806.) In *Hatfield*, the defendant's employee waxed the floor the same day as the accident and admitted the floor was slippery. (*Id.*, at pp. 803, 804, 806.) The Supreme Court found that the evidence showed defendant's employee, who spread the wax, knew it was slippery and therefore dangerous, and thus his negligence brought about the condition. (*Id.*, at p. 806.) Where the dangerous condition of the property that causes the injury has been created by reason of the negligence of the owner of the property or his employee acting within the scope of employment, the owner of the property cannot be permitted to assert that he had no notice of knowledge of the dangerous condition because under such circumstances knowledge thereof is imputed to him. (*Ibid.*) Plaintiff offers no similar evidence to show that Defendant created the water spill here.

### ***Evidentiary Objections***

Plaintiff's evidentiary objections fail to comply with rule 3.1354. (See Cal. Rules of Court, rule 3.1354.) First, Plaintiff fails to comply with rule 3.1354(b)(3). Plaintiff objects to multiple paragraphs of declarations in a single objection without quoting or setting forth the objectionable material. (Plaintiff's Evidentiary Objections nos. 1, 3, 4.) Second, Plaintiff fails to comply with one of the two formats required for evidentiary objections. (*Id.*, rule 3.1354(b).) Third, Plaintiff did not submit a proposed order as required by rule 3.1354(c). Therefore, the court DECLINES to rule on these objections based on failure to comply with rule 3.1354. (See *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1, 8 [trial court did not abuse its discretion in refusing to rule on evidentiary objections where they failed to comply with rule 3.1354].)

### ***Conclusion***

Defendant's Motion for Summary Judgment is GRANTED.

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If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Defendant shall prepare a written order and proposed judgment consistent with the Court's ruling for the Court's signature, pursuant to California Rules of Court, Rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court. The Court alerts the parties to revised Local Rule 3.403(b)(iv) (amended effective January 1, 2024) regarding the wording of proposed orders.

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2:00 PM

LINE 10

25-CLJ-08615

WELLS FARGO BANK, N.A. VS HAYLEY ROEMERS

WELLS FARGO BANK, N.A.  
HAYLEY ROEMERS

DOUGLAS AGNE  
PRO SE

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MOTION TO DEEM REQUESTS FOR ADMISSIONS ADMITTED AND OF NONAPPEARANCE

**TENTATIVE RULING:**

The court GRANTS plaintiff Wells Fargo Bank N.A.'s unopposed motion to deem facts admitted against defendant Hayley Roemers.

On January 7, 2026, 2025, plaintiff served by mail defendant with requests for admissions. (Declaration of Douglas Agne, ¶ 1, Ex. A.) More than thirty-five days have passed and there have been no responses. (*Id.*, ¶ 2.) Accordingly, pursuant to Code of Civil Procedure section 2033.420, the court deems the requests admitted. Plaintiff shall attach the requests for admission to the proposed order.

Plaintiff did not request sanctions and thus none are awarded.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for plaintiff shall prepare a written order consistent with the court's ruling for the court's signature, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling to all parties who have appeared in the action, as required by law and the California Rules of Court.

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2:00 PM

LINE 11

26-CIV-02242 YANIV COHEN VS. COUNTY OF SAN MATEO

YANIV COHEN  
COUNTY OF SAN MATEO

RENATO FLORES  
SAN MATEO COUNTY ATTORNEY'S  
OFFICE

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DEFENDANT COUNTY OF SAN MATEO'S DEMURRER TO PLAINTIFF YANIV COHEN'S COMPLAINT

**TENTATIVE RULING:**

The hearing has been vacated by notice filed September 4, 2026 because plaintiff filed a first amended complaint, which makes the demurrer moot.

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2:00 PM

LINE 12

26-CIV-04669

AVAYA LLC VS. XC EDIFY A, LLC, ET AL.

AVAYA LLC

XC EDIFY A, LLC

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PETITION OF CAPKEY ADVISORS, APC TO QUASH OUT OF STATE DEPOSITION SUBPOENA FOR PRODUCTION OF DOCUMENTS PURSUANT TO CODE OF CIVIL PROCEDURE SECTION 2029.600

**TENTATIVE RULING:**

The unopposed Petition to Quash Out-of-State Deposition Subpoena (the “Petition”) brought by Petitioner CapKey Advisors, APC is GRANTED.

*Background*

Petitioner asserts that it is a non-party to an out-of-state action, pending in Delaware (Case No. C.A. No. N25C-10-253-PAW (CCLD) (the “Lawsuit”)). Pursuant to a statute which is part of the Interstate and International Depositions and Discovery Act (Code Civ. Proc., §§ 2029.100 - 2029.900), Petitioner seeks an Order quashing a Subpoena for Production of Business Records in Action Pending Outside California (the “Deposition Subpoena”) served upon it regarding the Lawsuit, because the Deposition Subpoena would require Petitioner to disclose information protected by the attorney-client privilege, the work-product doctrine, or both.

*The Petition Is Granted.*

Petitioner is a California professional services corporation which provides legal advice to clients, including Defendant XC Edify – A, LLC (hereinafter, “Defendant” unless otherwise specified), regarding mergers and acquisitions. (Howard Decl., ¶ 2.) The Deposition Subpoena was served upon Petitioner’s Chairman, Rodrigo J. Howard, and its statutory agent for service of process, Joseph B. Hershenson. Mr. Howard is a California-licensed attorney for Defendant, who provided legal services to Defendant regarding a proposed asset purchase agreement (“APA”) involving one of Defendant’s portfolio companies. (*Id.*, ¶¶ 2-3.)

The Deposition Subpoena seeks documents relating to the APA. (*Id.*, ¶ 4, & Exh. A.) Good cause exists to quash the Deposition Subpoena, because the Deposition Subpoena would require Petitioner to disclose information protected by the attorney-client privilege, the work-product doctrine, or both. (*Id.*, ¶ 5.)

Although the discovery sought is to be used in a foreign jurisdiction, California law governs this issue. (Code Civ. Proc., § 2029.500.) If a dispute such as the instant arises, any party may petition the Superior Court where the discovery is to be conducted for an Order quashing the subpoena (*inter alia*). (Code Civ. Proc., § 2029.600, subd. (a).)

Strong policy considerations disfavor deposing opposing counsel, so that, “Depositions of opposing counsel are presumptively improper, severely restricted, and require ‘extremely’ good

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cause—a high standard.” (*Carehouse Convalescent Hospital v. Super. Ct.* (2006) 143 Cal.App.4th 1558, 1562 (*Carehouse*) (citations omitted).) As the Court of Appeal explains:

To effectuate these policy concerns, California applies a three-prong test in considering the propriety of attorney depositions. First, does the proponent have other practicable means to obtain the information? Second, is the information crucial to the preparation of the case? Third, is the information subject to a privilege?

Each of these prongs poses an independent hurdle to deposing an adversary’s counsel; *any one of them may be sufficient* to defeat the attempted attorney deposition.

(*Carehouse, supra*, 143 Cal.App.4th 1558, 1563 (citations omitted).) The proponent of the deposition bears the burden of proof to establish the first two prongs, and the opponent, the third.

Petitioner asserts that even though the Deposition Subpoena would require Petitioner to disclose privileged information, Plaintiff, whose attorney served the Deposition Subpoena (Howard Decl., ¶ 4, & Exh. A), has not established the extremely good cause required to subpoena an opposing party’s attorney. The Deposition Subpoena seeks “[A]ll non-privileged Documents and Communications concerning the drafting, negotiation, execution, intent, meaning, and/or understanding by the Parties’ [sic] and their respective counsel” of listed provisions of the APA. (Howard Decl., ¶ 4, & p.17, in Exh. A.) However, such communications or documents reflecting Petitioner’s thought processes would be privileged, so that the only nonprivileged documents that might exist would consist of communications with other parties, which are by definition available from other sources, if they are not already in Plaintiff’s possession. Thus, Plaintiff has not met its burden on the first prong, which alone suffices as a basis for quashing the Deposition Subpoena.

In addition, Plaintiff has not met its burden on the second prong, as Plaintiff has not shown that the broad scope of documentation sought is crucial to the preparation of its case, nor submitted facts whence such a determination could be made. This alone independently suffices as a basis for quashing the Deposition Subpoena.

Petitioner seeks to quash the Deposition Subpoena in its entirety, though its assertions of privilege apply only to the first request therein. The Deposition Subpoena includes two additional requests to which the assertions of privilege cannot apply, for:

2. Non-privileged Documents and Communications concerning Pivotal’s and Xplorer’s obligations to indemnify Avaya pursuant to the APA[; and]
3. Non-privileged Documents and Communications concerning the Edify Founders.

(Howard Decl., p.17, in Exh. A.) The Deposition Subpoena nonetheless fails the *Carehouse* test as to these additional requests, since any one of its prongs alone may suffice to defeat the attempted deposition (*Carehouse, supra*, 143 Cal.App.4th 1558, 1563), and Respondent has not filed a Response to meet its burden on the first nor the second prong. Accordingly, the third prong need not be reached.

If the tentative ruling is uncontested, it shall become the order of the Court. Thereafter, counsel for Petitioner shall prepare for the Court’s signature a written order consistent with the Court’s ruling, pursuant to California Rules of Court, rule 3.1312, and provide written notice of the ruling

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to all parties who have appeared in the action, as required by law and by the California Rules of Court.

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